

209 U. S.

Opinion of the Court.

This decision was reaffirmed in *Prout v. Starr*, 188 U. S. 537, 542.

Attention is also directed to the case of *Missouri &c. Rwy. Co. v. Missouri R. R. &c. Commissioners*, 183 U. S. 53. That was a suit brought in a state court of Missouri by the railroad commissioners of the State, who had the powers granted them by the statutes set forth in the report. Their suit was against the railway company to compel it to discontinue certain charges it was making for crossing the Boonville bridge over the Missouri River. The defendant sought to remove the case to the Federal court, which the plaintiffs resisted, and the state court refused to remove on the ground that the real plaintiff was the State of Missouri, and it was proper to go behind the face of the record to determine that fact. In regular manner the case came here, and this court held that the State was not the real party plaintiff, and the case had therefore been properly removed from the state court, whose judgment was thereupon reversed.

Applying the same principles of construction to the removal act which had been applied to the Eleventh Amendment, it was said by this court that the State might be the real party plaintiff when the relief sought enures to it alone, and in whose favor the judgment or decree, if for the plaintiff, will effectively operate.

Although the case is one arising under the removal act and does not involve the Eleventh Amendment, it nevertheless illustrates the question now before us, and reiterates the doctrine that the State is not a party to a suit simply because the State Railroad Commission is such party.

The doctrine of *Smyth v. Ames* is also referred to and reiterated in *Gunter, Attorney General, v. Atlantic &c. Railroad Co.*, 200 U. S. 273, 283. See also *McNeill v. Southern Railway*, 202 U. S. 543-559; *Mississippi Railroad Commission v. Illinois &c. Railroad Co.*, 203 U. S. 335, 340.

The various authorities we have referred to furnish ample justification for the assertion that individuals, who, as officers